THE CODE OF CRIMINAL PROCEDURE, 1973 (CrPC)

Act No. 2 of 1974 (Procedural Criminal Code for Pre-July 1, 2024 Proceedings)
Preserved for Pending Inquiries, Trials & Appeals under Section 531(2)(a) BNSS

Section 2 CrPC (Definitions: Bailable, Cognizable Offences)

Section 2(a) defines 'bailable offence' as an offence shown as bailable in the First Schedule, or made bailable by any other law; all other offences are non-bailable. Section 2(c) defines 'cognizable offence' as an offence for which a police officer may arrest without warrant. Section 2(l) defines 'non-cognizable offence'.

Section 41 & Section 41A CrPC (Arrest without Warrant & Mandatory Notice of Appearance)

Under Section 41, arrest for offences punishable with up to 7 years imprisonment requires recorded reasons of necessity. Under Section 41A, where arrest is not requisite under Section 41(1), the police officer must issue a notice directing the person to appear before him. So long as the person complies, he shall not be arrested (Codified by Arnesh Kumar v. State of Bihar).

Section 50 & Section 57 CrPC (Grounds of Arrest & 24-Hour Detention Limit)

Section 50 mandates informing the arrested person forthwith of full particulars of the offence and right to bail. Section 57 establishes that no police officer shall detain in custody a person arrested without warrant for a longer period than 24 hours, excluding journey time, without a special order of a Magistrate under Section 167.

Section 154 CrPC (Information in Cognizable Cases - Mandatory FIR Registration)

Every information relating to the commission of a cognizable offence, if given orally to an officer in charge of a police station, shall be reduced to writing and read over to the informant. Pursuant to the 5-Judge Constitution Bench in Lalita Kumari v. Govt of UP, registration of an FIR is mandatory under Section 154 if the information discloses a cognizable offence.

Section 156(3) CrPC (Magistrate's Power to Direct Investigation)

Any Magistrate empowered under Section 190 may order an investigation by the police into any cognizable case where the police station has failed or refused to register an FIR under Section 154.

Section 161 & Section 164 CrPC (Witness Statements & Confessions before Magistrate)

Section 161 empowers police to examine witnesses orally during investigation (not signed by witness, not substantive evidence). Section 164 empowers Metropolitan/Judicial Magistrates to record confessions and statements during investigation; confessions must be voluntary after statutory warning that the person is not bound to confess.

Section 167 CrPC (Remand & Default Statutory Bail)

Limits police custody remand to a maximum period of 15 days in the whole. Total detention in custody cannot exceed 90 days (for offences punishable with death, life, or not less than 10 years) or 60 days (for all other offences). Upon expiry of 60/90 days without chargesheet filing, the accused has an indefeasible right to default statutory bail upon offering bail bonds.

Section 173 CrPC (Report of Police Officer on Completion of Investigation / Chargesheet)

Investigation must be completed without unnecessary delay. As soon as completed, the police officer forwards a police report (chargesheet or final closure report) to the Magistrate empowered to take cognizance under Section 190(1)(b).

Section 436 & Section 436A CrPC (Bail as of Right & Maximum Undertrial Detention)

Section 436 provides that bail is a matter of absolute right in bailable offences. Section 436A provides that undertrial prisoners who have undergone detention extending up to one-half of the maximum imprisonment specified for the offence (other than death penalty) shall be released on personal bond.

Section 437 CrPC (Bail in Non-Bailable Offences by Magistrate)

Discretionary bail by Magistrate; cannot be granted if there are reasonable grounds for believing the accused is guilty of an offence punishable with death or life imprisonment, unless the person is under 16, a woman, or sick or infirm.

Section 438 CrPC (Direction for Grant of Bail to Person Apprehending Arrest / Anticipatory Bail)

Empowers the High Court or Court of Session to grant anticipatory bail to any person who has reason to believe that he may be arrested on an accusation of having committed a non-bailable offence (Governed by Constitution Benches in Sibbia and Sushila Aggarwal).

Section 439 CrPC (Special Powers of High Court / Sessions Court Regarding Regular Bail)

Special concurrent powers of High Court or Sessions Court to direct release on bail of any person accused of an offence and in custody, or to modify any conditions imposed by a Magistrate.

Section 482 CrPC (Inherent Powers of the High Court to Quash Proceedings)

Nothing in this Code shall be deemed to limit or affect the inherent powers of the High Court to make such orders as may be necessary to give effect to any order under this Code, or to prevent abuse of the process of any Court or otherwise to secure the ends of justice (Governed by Bhajan Lal guidelines).